

Franciscus Dylan Rosario,
7624 Melody Drive,
Rohnert Park, CA 94928,
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

OBJECTION / STRIKE

SEPT 22 SUPPLEMENTAL

CCP 391

Hearing: October 6, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under Code of Civil Procedure section 1010; California Rules of Court, rules 3.1110 and 3.1113; and Code of Civil Procedure sections 391 through 391.7, 916, and 1049, as an objection to matter filed outside the August 26, 2026 briefing order on Defendant's motion to declare Plaintiff a vexatious litigant.
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court,

1 rules 2.118 and 2.119; this paper does not present any of those grounds.

2 4. The Court's authority to consider the substance is under the August 26, 2026 order continuing
3 the motion, and under Code of Civil Procedure sections 391 through 391.7, 916, and 1049.

4 5. This paper objects to specified parts of Defendant's September 22, 2026 supplemental brief
5 and the Declaration of Tyler J. O'Connell filed with it. It does not replace Plaintiff's July
6 21-22, 2026 opposition, the August 20, 2026 supplemental papers, or Plaintiff's objections
7 under California Rules of Court, rule 3.1312. It is not a second opposition on the merits of
8 the vexatious-litigant motion.

9 Hearing: October 6, 2026, 9:00 a.m., Dept. 302.

10 **PLAINTIFF'S OBJECTION TO DEFENDANT CSAA INSURANCE EXCHANGE'S SEPTEMBER 22, 2026 SUPPLEMENTAL BRIEF AND DECLARATION OF TYLER J. O'CONNELL**
11 **AS EXCEEDING THE AUGUST 26, 2026 BRIEFING ORDER; REQUEST TO STRIKE**
12

13 **I. INTRODUCTION**

14 On August 26, 2026, this Court heard Defendant CSAA Insurance Exchange's motion to declare
15 Plaintiff a vexatious litigant in Case No. CGC-25-631802. The face of the order states: "Off
16 calendar. Case stayed." The Court continued the motion to October 6, 2026, at 9:00 a.m. in this
17 department, and ordered each party to file a supplemental brief of no more than six pages on two
18 questions only: whether this Court currently has jurisdiction to hear the motion, and the application
19 of *Pittman v. Beck Park Apartments, Ltd.* (2018) 20 Cal.App.5th 1009.

20 Defendant's memorandum is six printed pages. Plaintiff does not object that the memorandum
21 missed the page count, and does not object that the filing date missed close of business on September
22 22, 2026. The courtesy-copy deadline of 4:00 p.m. on September 24, 2026 has not arrived.
23 The objection is that Defendant used the brief, and an 80-page declaration packet, for matters the
24 order did not authorize, and then asked the Court to grant the motion while the case is stayed.
25 Citations below are to the printed page and line of Defendant's supplemental brief.

26 **II. THE ORDER'S LIMITS**

27 The August 26, 2026 order did four things that control this objection. It took the motion off calendar.
28 It stayed the case. It continued the hearing to October 6, 2026. It confined the supplemental

1 briefs to jurisdiction and *Pittman*, in no more than six pages.

2 A six-page memorandum that spends its later pages on probability of prevailing, a mooted demur-
3 rer, other lawsuits, and a same-day email is not a brief on those two questions. A declaration with
4 three exhibits, running about 80 PDF pages, is not the brief the Court ordered.

5 **III. PASSAGES THAT EXCEED THE ORDER**

6 **A. Introduction, page 1, lines 25-28, and page 2, lines 1-3.** Those lines tell the Court that “no
7 reasonable probability” of prevailing can be decided apart from the appeal, and that the Court can
8 and should “proceed to decide the motion.” The order asked whether the Court has jurisdiction. It
9 did not ask the Court to decide the motion in the supplemental brief.

10 **B. Section A, page 2, lines 21-26.** The discussion of Code of Civil Procedure section 916 above
11 those lines is on the first question. Lines 21-26 ask for three orders: that Plaintiff be deemed a
12 vexatious litigant, that he obtain court approval for future filings, and that he furnish security “in
13 his multiple pending litigations.” They also say that affirmance or reversal of the anti-SLAPP order
14 would not undo those determinations. That is a request for relief.

15 **C. Section C in full, page 4, line 4, through page 5, line 9.** The heading is that the Court can
16 determine Plaintiff has no reasonable probability of success. The section argues Code of Civil
17 Procedure sections 391(b) and 391.1, a filed but mooted demurrer and motion to strike, and a
18 security order under section 391.1(a). None of that is one of the two questions.

19 **D. Section D in full, page 5, line 10, through page 6, line 13.** The heading invokes “harassment”
20 and filings in other courts. The section asserts six pending actions, the appeal in *Rosario v. Abdel-*
21 *halim*, No. A173827, a Contra Costa complaint, and email correspondence, and it asks the Court
22 to “decide this motion on the merits.” That is a merits brief.

23 **E. Conclusion, page 6, lines 15-17.** Defendant asks the Court to “proceed to hear, and grant,” the
24 motion, “including all other relief as requested in the Motion and Proposed Order.” The August
25 26 order vacated submission, stayed the case, and continued the hearing for briefing on two legal
26 questions. A grant request on this filing goes outside that order.

27 **F. Declaration of Tyler J. O’Connell, paragraphs 2 through 5, and Exhibits A, B, and C.** The
28 order authorized a supplemental brief. It did not authorize a new evidentiary record. Paragraphs

2 through 5, and Exhibits A (a Contra Costa complaint), B (an unpublished appellate opinion), and C (email), are offered to prove vexatious conduct. They do not brief section 916 or *Pittman*. In the alternative, the packet evades the six-page limit by moving the same merits material into attachments after the memorandum used its six pages.

IV. WHAT PLAINTIFF DOES NOT OBJECT TO

Plaintiff does not ask the Court to strike the statement of the two questions (brief page 1, lines 5-9), Section A except page 2, lines 21-26, or Section B (page 3, line 1, through page 4, line 3). Those parts address jurisdiction and *Pittman*. Plaintiff will answer them at the October 6 hearing. Errors in that discussion are not a ground to strike the filing for violating the briefing order.

V. THE STAY

The case is stayed. Defendant's excess pages and exhibits ask the Court to receive a merits record, and to grant relief, before the Court decides the jurisdiction question the order set for October 6. Plaintiff asks that those parts be stricken and disregarded for any purpose on the motion.

VI. RESERVATION

Plaintiff does not waive the July 21-22, 2026 opposition, the August 20, 2026 supplemental papers, the objections under California Rules of Court, rule 3.1312, or the objections under Code of Civil Procedure sections 916 and 1049. Plaintiff does not consent to jurisdiction to hear or grant the motion while the stay and the appeal from the July 1, 2026 order remain.

VII. REQUEST

Plaintiff respectfully requests that the Court:

1. Strike brief page 1, lines 25-28; page 2, lines 1-3; page 2, lines 21-26; Section C; Section D; and page 6, lines 15-17;
2. Strike the Declaration of Tyler J. O'Connell and Exhibits A, B, and C;
3. Disregard those passages and exhibits for any purpose on the vexatious-litigant motion;
4. Limit the October 6, 2026 hearing to the two questions in the August 26, 2026 order, on the brief passages that address those questions; and
5. Keep the August 26, 2026 stay in place until the Court decides the jurisdiction question.

1 Dated: September 22, 2026

2 

3 Franciscus Dylan Rosario
4 Plaintiff, In Pro Per

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**SUPERIOR COURT OF THE STATE OF CALIFORNIA
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Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

DECLARATION

RECEIPT OF SUPPLEMENTAL

Hearing: October 6, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This declaration is filed under Code of Civil Procedure section 2015.5 in support of Plaintiff's objection to Defendant's September 22, 2026 supplemental brief and declaration on the motion to declare Plaintiff a vexatious litigant under Code of Civil Procedure sections 391 through 391.7.
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court,

1 rules 2.118 and 2.119; this paper does not present any of those grounds.

2 4. No exhibit is attached to this declaration.

3 Hearing: October 6, 2026, 9:00 a.m., Dept. 302.

4 **DECLARATION OF FRANCISCUS DYLAN ROSARIO IN SUPPORT OF OBJECTION**
5 **TO DEFENDANT’S SEPTEMBER 22, 2026 SUPPLEMENTAL BRIEF AND DECLARA-**
6 **TION**

7 I, Franciscus Dylan Rosario, declare:

- 8 1. I am the Plaintiff in Case No. CGC-25-631802. I make this declaration in support of my ob-
9 jection that Defendant CSAA Insurance Exchange’s September 22, 2026 supplemental brief
10 and the Declaration of Tyler J. O’Connell exceed the August 26, 2026 briefing order. The
11 facts stated here are within my personal knowledge. If called as a witness, I could and would
12 testify competently to them.
- 13 2. On September 22, 2026, I received by electronic mail two papers from counsel for Defendant.
14 Defendant’s proof of service on each paper states electronic service that day under Code of
15 Civil Procedure section 1010.6.
- 16 3. The first paper is titled Defendant CSAA Insurance Exchange’s Supplemental Brief in Sup-
17 port of the Court’s Jurisdiction to Hear the Defendant’s Motion to Declare Plaintiff a Vexa-
18 tious Litigant. The copy I received is 8 PDF pages. The memorandum is numbered pages 1
19 through 6. A caption page and a proof of service accompany it.
- 20 4. The second paper is titled Declaration of Tyler J. O’Connell in Support of Defendant CSAA
21 Insurance Exchange’s Supplemental Brief. The copy I received is 80 PDF pages. It includes
22 Exhibit A, Exhibit B, and Exhibit C, and its own proof of service.
- 23 5. I do not attach those papers to this declaration. The page and line citations in the accompa-
24 nying objection are to the printed memorandum in the copy described in paragraph 3.

25 I declare under penalty of perjury under the laws of the State of California that the foregoing is
26 true and correct.

27 Executed on September 22, 2026 at Rohnert Park, California.

1 FRANCISCUS DYLAN ROSARIO

2 Dated: September 22, 2026

3 

4 Franciscus Dylan Rosario
5 Plaintiff, In Pro Per

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**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

DECLARATION OF COMPLIANCE

CRC 2.256 / 3.1110

Hearing: October 6, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under California Rules of Court, rule 2.256, subdivision (b); California Rules of Court, rule 2.257; California Rules of Court, rule 3.1110, subdivision (f)(4); and Code of Civil Procedure section 2015.5.
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court, rules 2.118 and 2.119; this paper does not present any of those grounds.

1 4. The Court’s authority to consider the substance is under Code of Civil Procedure section
2 1010.6, subdivision (b) (compliance attestation in connection with e-filing).

3 5. This paper accompanies Plaintiff’s September 22, 2026 objection to Defendant’s supplemen-
4 tal brief and declaration on the motion to declare Plaintiff a vexatious litigant under Code of
5 Civil Procedure sections 391 through 391.7, Case No. CGC-25-631802, hearing October 6,
6 2026, 9:00 a.m., Dept. 302.

7 Hearing: October 6, 2026, 9:00 a.m., Dept. 302.

8 I, Franciscus Dylan Rosario, Plaintiff in pro per, declare:

9 **I. PLEADING-PAPER AND FIRST-PAGE FORMAT**

10 1. **California Rules of Court, rules 2.100 through 2.111.** Each paper in this objection cohort
11 is rendered on pleading paper with court caption, line numbering where appropriate, page
12 numbering, readable type, and first-page formatting consistent with California Rules of Court,
13 rules 2.100 through 2.111.

14 **II. ELECTRONIC FILING AND FORMAT**

- 15 1. **CRC 2.256(b), text-searchable PDFs and OCR.** Each generated PDF in this filing cohort is
16 text-searchable. This cohort attaches no exhibit.
- 17 2. **CRC 2.257, signatures.** Declarations and service papers in this cohort include the declarant’s
18 electronic signature or signature image and are intended to comply with CRC 2.257.
- 19 3. **CRC 3.1110(f)(4), bookmarks.** No exhibit volume is lodged with this cohort. Each PDF in
20 this cohort is a single titled paper.
- 21 4. **SFTC Local Rule electronic filing hygiene.** The filing PDFs should be uploaded without ex-
22 ternal hyperlink dependencies, active annotations, hidden layers, or unflattened transparency.

23 **III. SERVICE**

24 1. **CCP sections 1010.6, 1013, 1013a, and 1015; CRC 1.21.** Service of this objection cohort
25 is by electronic mail on the Porter Scott service list identified in the accompanying POS-050,
26 including ctapp@porterscott.com and toconnell@porterscott.com.

IV. OBJECTION MATERIALS

1. **Code of Civil Procedure sections 391 through 391.7; August 26, 2026 order.** The lead paper is Plaintiff's objection that Defendant's September 22, 2026 supplemental brief and the Declaration of Tyler J. O'Connell exceed the August 26, 2026 briefing order, with a receipt declaration, this declaration of compliance, a proposed order, and POS-050. The packet does not replace the July 21-22, 2026 vexatious-litigant opposition.
2. **No new exhibit dump.** This cohort does not attach Defendant's September 22, 2026 PDFs or any other exhibit.

V. EXHIBIT AND HASH HANDLING

1. Before upload or chambers lodging, Plaintiff will verify page count, OCR status, bookmark status, hyperlink status, byte size, and SHA-256 hash for each PDF in this cohort actually lodged with the court.
2. This declaration is limited to the papers identified in the accompanying POS-050.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on September 22, 2026 at Rohnert Park, California.

Dated: September 22, 2026



Franciscus Dylan Rosario
Plaintiff, In Pro Per

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**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

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CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

PROOF OF SERVICE

POS-050

Hearing: October 6, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

PROOF OF SERVICE (POS-050)

Case Name: FRANCISCUS DYLAN ROSARIO v. CSAA INSURANCE EXCHANGE, et al.

Case Number: CGC-25-631802

Hearing line: October 6, 2026, 9:00 a.m., Dept. 302

Documents Served:

1. Plaintiff's Objection to Defendant CSAA Insurance Exchange's September 22, 2026 Supplemental Brief and Declaration of Tyler J. O'Connell as Exceeding the August 26, 2026 Briefing Order; Request to Strike.
2. Declaration of Franciscus Dylan Rosario in Support of that Objection.
3. Declaration of Compliance with California Rules of Court, rules 2.256 and 3.1110.
4. [Proposed] Order Striking Portions of Defendant's September 22, 2026 Supplemental Brief

1 and Declaration.

2 5. This Proof of Service (POS-050).

3 **SERVICE INFORMATION**

4 **Date of Service:** September 22, 2026

5 **Method of Service:** Electronic service via email pursuant to Code of Civil Procedure section
6 1010.6 and California Rules of Court, rule 1.21.

7 **Electronic Service Address of Server:** soltrinox@gmail.com

8 **PERSONS SERVED**

- 9 1. Chad S. Tapp, Esq. (also appearing as Mark G. / Chad S. Tapp on Porter Scott filings), Porter
10 Scott, P.C.; electronic service address: ctapp@porterscott.com; consent on file per seq 009.
- 11 2. Tyler J. O'Connell, Esq., Porter Scott, P.C.; electronic service address: toconnell@porterscott.com;
12 consent on file per seq 009.
- 13 3. Mason Schubert, Esq., Porter Scott, P.C.; electronic service address: mschubert@porterscott.com;
14 consent on file per seq 009.
- 15 4. Sarah J. Blithe, Esq., Porter Scott, P.C.; electronic service address: sblithe@porterscott.com;
16 consent on file per seq 009.

17 Primary noticed service addresses on the moving papers: ctapp@porterscott.com and toconnell@porterscott.com.

18 **DECLARATION**

19 I, Franciscus Dylan Rosario, declare: I am the Plaintiff in the above-captioned action. I am over
20 the age of 18 and competent to make this declaration. On the date of service above, I caused to
21 be served by electronic mail the documents identified above on the persons listed above at their
22 respective electronic service addresses. Each person listed has consented to electronic service per
23 Code of Civil Procedure section 1010.6, as documented by the Consent to Electronic Service filed
24 in this case at seq 009 (March 6, 2026).

25 I declare under penalty of perjury under the laws of the State of California that the foregoing is
26 true and correct.

27 Executed on September 22, 2026 at Rohnert Park, California.

1 Dated: September 22, 2026

2 

3 Franciscus Dylan Rosario
4 Plaintiff, In Pro Per

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**SUPERIOR COURT OF THE STATE OF CALIFORNIA
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Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

[PROPOSED] ORDER

STRIKE EXCESS

Hearing: October 6, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is lodged as a proposed order under California Rules of Court, rule 3.1312, in connection with Plaintiff's objection that Defendant's September 22, 2026 supplemental brief and declaration exceed the August 26, 2026 briefing order on the motion to declare Plaintiff a vexatious litigant under Code of Civil Procedure sections 391 through 391.7.
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court,

1 rules 2.118 and 2.119; this paper does not present any of those grounds.

2 4. The Court's authority to consider the substance is under the August 26, 2026 order and Code
3 of Civil Procedure sections 391 through 391.7, 916, and 1049.

4 5. This proposed order accompanies Plaintiff's September 22, 2026 objection. It is not a sec-
5 ond opposition. It does not replace Plaintiff's July 21-22, 2026 proposed order denying the
6 motion.

7 Hearing: October 6, 2026, 9:00 a.m., Dept. 302.

8 **[PROPOSED] ORDER STRIKING PORTIONS OF DEFENDANT'S SEPTEMBER 22, 2026**
9 **SUPPLEMENTAL BRIEF AND DECLARATION**

10 On August 26, 2026, the Court stayed this case, continued Defendant CSAA Insurance Exchange's
11 motion to declare Plaintiff a vexatious litigant to October 6, 2026, at 9:00 a.m. in this department,
12 and limited each party's supplemental brief to six pages on two questions: whether this Court cur-
13 rently has jurisdiction to hear the motion, and the application of *Pittman v. Beck Park Apartments,*
14 *Ltd.* (2018) 20 Cal.App.5th 1009.

15 The Court, having considered Plaintiff's objection to Defendant's September 22, 2026 supplemen-
16 tal brief and the Declaration of Tyler J. O'Connell, rules as follows:

17 1. The following portions of Defendant's supplemental brief are stricken and shall be disre-
18 garded for any purpose on the motion: page 1, lines 25-28; page 2, lines 1-3; page 2, lines
19 21-26; Section C (page 4, line 4, through page 5, line 9); Section D (page 5, line 10, through
20 page 6, line 13); and page 6, lines 15-17.

21 2. The Declaration of Tyler J. O'Connell and Exhibits A, B, and C are stricken and shall be
22 disregarded for any purpose on the motion.

23 3. The October 6, 2026 hearing is limited to the two questions in the August 26, 2026 order.

24 4. The August 26, 2026 stay remains in place until the Court decides the jurisdiction question.

25 IT IS SO ORDERED.

26 Dated: September 22, 2026



Franciscus Dylan Rosario
Plaintiff, In Pro Per

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